



CHAPTER vi.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Buckhaven and Methil Burgh. [5th March 1925.] A.D. 1925.

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament : 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Buckhaven and Methil Burgh Order Confirmation Act 1925. Short title.

A.D. 1925.

S C H E D U L E.

BUCKHAVEN AND METHIL BURGH.

Provisional Order to extend the boundaries of the burgh of Buckhaven Methil and Innerleven and for other purposes.

WHEREAS the provost magistrates and councillors of the burgh of Buckhaven Methil and Innerleven in the county of Fife (hereinafter referred to as "the Town Council") are the municipal and local authority therein and are charged with the management and administration thereof :

And whereas the demand for additional houses arising from and in consequence of an increased population the relief of congestion and the removal of slum property cannot be met within the existing burgh and it is expedient that such houses should be built within the burgh boundaries :

And whereas owing to the insufficiency of open spaces within the existing burgh available for the purposes of health and recreation ground outwith and immediately adjoining the existing burgh is used for such purposes by the inhabitants and others and it is expedient that the user thereof should be subject to municipal regulation :

And whereas it is expedient that the boundaries of the existing burgh of Buckhaven Methil and Innerleven should be extended as by this Order provided and that all franchises rights privileges and immunities of and pertaining to the existing burgh of Buckhaven Methil and Innerleven and the powers and jurisdictions of the Town Council and all other powers and jurisdictions applicable within the existing burgh should as by this

Order provided be extended to and be applicable within the burgh as extended by this Order and to the inhabitants thereof : A.D. 1925.
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And whereas for the purposes of such extension it is expedient that subject to the provisions of this Order the district annexed should be separated and disjoined for the purposes of this Order from the county of Fife and that subject to the said provisions all matters of administration and management and all jurisdictions powers functions and authorities within the district annexed including the maintenance and management of the roads and streets should devolve upon and be vested in the Town Council :

And whereas it is expedient that the district annexed should be added to the existing wards of the existing burgh as in this Order provided :

And whereas it is expedient that the Innerleven special drainage district so far as situated in the district annexed should be abolished :

And whereas it is expedient that the separate drainage districts so far as situated in the existing burgh should be abolished and that the burgh as extended should be constituted into one drainage district :

And whereas it is expedient that the name of the burgh should be changed as in this Order provided :

And whereas it is expedient that the other provisions in this Order contained should be enacted :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited as the Buckhaven and Methil Burgh Order 1925 and the Buckhaven Methil and Innerleven Burgh Extension Act 1906 and this Order may be cited as the Buckhaven and Methil Burgh Acts 1906 and 1925. Short and collective titles.

2. This Order shall (except as otherwise hereinafter provided) commence and have effect on and from the Commence-
ment of
Order.

[Ch. vi.] *Buckhaven and Methil* [15 GEO. 5.]
Burgh Order Confirmation Act, 1925.

A.D. 1925. fifteenth day of May one thousand nine hundred and twenty-five (which date is hereinafter referred to as "the commencement of this Order" or "the annexation").

Interpre-
tation.

3. In this Order (unless there be something in the subject or context inconsistent with or repugnant to such construction) the several words and expressions to which meanings are assigned by any public or local Act of Parliament or Order applicable within the burgh shall subject to the provisions of this Order have the same respective meanings and the following expressions shall have the meanings assigned to them in this section (that is to say) :—

"Existing burgh" means the burgh of Buckhaven Methil and Innerleven within the limits and boundaries existing immediately previous to the commencement of this Order;

"Burgh" or "extended burgh" means the existing burgh as extended by this Order;

"District annexed" means and includes the areas described in the Second Schedule to this Order;

"Wards" means the wards of the existing burgh as added to by this Order;

"Town Council" means the provost magistrates and councillors of the existing burgh or of the burgh as the case may be;

"Magistrates" means the magistrates of the existing burgh or of the burgh as the case may be;

"Town clerk" means the town clerk of the existing burgh or of the burgh as the case may be;

"Town Councils Acts" means the Town Councils (Scotland) Acts 1900 to 1923 and any Acts amending or extending the same;

"County" means the county of Fife;

"County council" means the county council of the county;

"District committee" means the Kirkcaldy District Committee of the county council.

4.—(1) The municipal and police boundaries of the existing burgh shall be and are hereby extended to and shall include and comprehend the existing burgh and the district annexed and the burgh shall be comprised within the limits and boundaries set forth and described in the First Schedule to this Order. Provided that the description of the said boundaries shall be subject to the rules of construction in section 5 of the Representation of the People (Scotland) Act 1832.

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 Extension of
 boundaries
 and change
 of name of
 burgh.

(2) The burgh shall be designated and known as the burgh of Buckhaven and Methil.

5. A map of the burgh of which six copies have been signed by Dugald McCoig Cowan M.P. Chairman of Commissioners to whom this Order was referred shall within one month after the commencement of this Order be deposited as follows (that is to say) one copy with the town clerk at his office one copy with the sheriff clerk of the county at his office in Kirkcaldy one copy with the Secretary for Scotland one copy with the Ministry of Agriculture and Fisheries one copy with the Commissioners of Customs and Excise and one copy with the Board of Trade. If there be any discrepancy between the said map and the description in the First Schedule to this Order the said map shall be deemed to be correct and shall prevail.

Map of
 burgh.

6. The district annexed shall be and the same is hereby for the purposes of this Order disjoined from the county.

District dis-
 joined from
 the county.

7.—(1) The Innerleven special drainage district of the district committee so far as situated within the burgh shall be abolished and to that extent all resolutions of the district committee or the county council and all orders and decrees of the sheriff or of any other authority constituting or relating to the said special district shall be of no force or effect so far as extending to or affecting any part of the burgh and the district committee and the county council shall be relieved by the Town Council from all obligations in respect of the said special district so far as the same is situated within the district annexed.

Abolition of
 Innerleven
 special
 district.

(2) The Town Council shall relieve the county council of the existing debt of the Innerleven special drainage district.

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(3) The Town Council shall not in respect of such special district be under any obligations nor except by agreement with the local authorities of such district exercise any powers in such district so far as it is beyond the burgh.

New drain-
age district.

8. The separate drainage districts in the existing burgh shall be abolished and the whole drainage area comprised in the burgh shall be constituted into one drainage district.

Additions to
wards.

9. The district annexed shall be added to the wards of the existing burgh as follows :—

The district first described in the Second Schedule to this Order shall be added to the existing Ward I. the district second described in the said schedule shall be added to the existing Ward II. the district third described in the said schedule shall be added to the existing Ward III. and the district fourth described in the said schedule shall be added to the existing Ward IV. and the said wards as so added to shall be the wards of the burgh.

Application
of Acts as to
municipal
elections.

10. The provisions of the Town Councils Acts so far as the same apply to the existing burgh regarding the election of town councillors in burghs divided into wards or districts shall subject to the provisions of this Order apply to the elections in and to the four wards and to the election qualification continuance in office declinatures resignations and retirements of councillors and to supplying vacancies in the council by death disability resignations or other causes or otherwise.

Town
Council to
administer
affairs of
burgh.

11. The Town Council shall in all respects stand in relation to the administration of the affairs and property of the burgh and of property under the care and management of the Town Council in the same position in which the Town Council of the existing burgh shall stand previous to the commencement of this Order and the Town Council shall have the same rights and powers of administration of the property and affairs of the burgh and of making all usual and necessary appointments as shall have lawfully belonged to and been exerciseable or exercised by the Town Council of the existing burgh.

in regard thereto anything in the set usage or customs of the existing burgh to the contrary notwithstanding. A.D. 1925. —

12. The magistrates and the Town Council respectively shall have possess and may exercise over the burgh and the inhabitants thereof all the jurisdictions (civil and criminal) powers rights and authorities which they respectively now have possess and exercise over the existing burgh and the inhabitants thereof whether at common law or by statute or otherwise including all powers of imposing levying and recovering rates and assessments dues and charges and all rights and privileges and immunities and obligations at present enjoyed and possessed by or incumbent on the inhabitants of the existing burgh shall subject to the provisions of this Order extend and apply to the inhabitants of the burgh. Powers of magistrates and councillors extended to burgh.

13. From and after the commencement and subject to the provisions of this Order all jurisdictions rights powers functions duties and authorities which previous to the commencement of this Order were exercised or exerciseable by the county council or any local licensing or other authority within the district annexed or any part thereof under any public general or local or private Act of Parliament or Order (with the exception of such jurisdictions rights powers and authorities as are presently exercised or exerciseable by the county council or any committee thereof or other assessing authority within the existing burgh) shall cease and determine. Powers of other jurisdictions to cease.

14. Nothing in this Order contained shall affect or restrict the rights powers privileges jurisdictions and authorities conferred on the Wemyss and District Water Trustees by the Wemyss and District Water Order 1910. For protection of Wemyss and District Water Trustees.

15. Subject to the provisions of this Order all property belonging to the Town Council at the commencement of this Order or to which the Town Council is entitled or which is held or administered by any person for or on behalf of the community of the existing burgh or for the public ends and purposes thereof shall be vested in and be held by the Town Council for the behoof and benefit of the burgh or as the case may be administered by such person for or on behalf of the Property of existing burgh vested in Town Council.

A.D. 1925. — community of the burgh or for the public ends and purposes thereof and all debts and obligations due by or exigible from the Town Council at the commencement of this Order shall be due by and exigible from the Town Council and all debts due to the Town Council by any person prior to the commencement of this Order may be demanded and recovered from such person and received and applied by the Town Council for the behoof of the burgh.

Property
and liabilities in
district
annexed
vested in
Town
Council.

16.—(1) Subject to the provisions of this Order all property vested in held by or due or belonging to the county council or the district committee in the district annexed shall by virtue of this Order be transferred to vested in held by and be due and belong to the Town Council and shall form part of the property and assets of the Town Council for all the estate and interest therein of the county council or district committee and shall be received held and enjoyed by the Town Council accordingly.

(2) All the powers duties liabilities debts obligations contracts and agreements of the county council or district committee in relation to the district annexed shall by virtue of this Order be transferred and attached to the Town Council and shall form part of the powers duties liabilities debts obligations contracts and agreements of the Town Council and be enjoyed performed paid and discharged by them.

Assessment
of burgh.

17. Subject to the provisions of this Order every rate charge or assessment (except such rates or assessments as are presently requisitioned for or levied and collected by the county council or the parish council within the existing burgh) authorised to be requisitioned for levied and collected by the county council or other local authority having jurisdiction over the district annexed or any part or parts thereof but which shall not have been actually imposed previous to the commencement of this Order shall thereupon cease and determine within the district annexed and thereafter all assessments and rates leviable within the existing burgh by the Town Council shall be leviable on and within the burgh in the same way and manner as the same are leviable on and within the existing burgh.

18. Every rate charge or assessment which shall have been actually imposed by the county council or other local authority who had jurisdiction within the district annexed or any part thereof before the commencement of this Order together with all arrears thereof shall continue to be due and payable and may be collected and levied by the persons who respectively imposed the same and by the ways and means and under the same restrictions and regulations as if this Order had not been confirmed and shall be received and applied by such persons respectively to and for the purposes for which the same were authorised to be levied.

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 Recovery of
 assessments
 within
 district
 annexed.

19. For a period of ten years from the commencement of this Order the rates and assessments levied by the Town Council in each year upon the occupiers of the houses at the seventh day of August one thousand nine hundred and twenty-four situated in Jordan Terrace and Cottages shall not exceed the rates and assessments levied by the county council upon occupiers of houses in the Kirkcaldy district of the county.

For pro-
 tection
 of occupiers
 of houses in
 Jordan
 Terrace and
 Cottages.

20. The roads streets highways lanes bridges foot-pavements and footpaths and the sewers and drains in the district annexed so far as the same are vested in and managed maintained and repaired by the county council or district committee shall by virtue of this Order be transferred to and vested in and managed maintained and repaired by the Town Council along with and in the same way and manner and to the same extent as the roads streets highways lanes bridges foot-pavements and footpaths and sewers and drains within the existing burgh and the county council and the district committee shall be freed and relieved of the repair and maintenance of all such roads streets lanes bridges foot-pavements and footpaths and sewers and drains so far as within the district annexed in all time coming.

Roads &c.
 in district
 annexed.

21. Nothing in this Order contained with respect to the vesting in the Town Council of roads streets lanes bridges foot-pavements footpaths sewers or drains within the district annexed shall prevent any superiors owners or other persons by whom or by whose predecessors the same shall have been formed from recovering the cost or any proportion of the cost of forming the same from feuars or other persons under any agreements made between such persons respectively.

Saving
 rights in
 roads &c.

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Property
and maintenance of
Leven
Bridge.

22. All right of property or interest of the county council and the district committee in the bridge carrying the Kirkcaldy to Leven Road over the River Leven and the road carried thereby and all liability of the county council or district committee to maintain the same shall be transferred from the county council and the district committee to the Town Council.

Books &c.
to be
evidence.

23.—(1) All books documents maps and plans directed or authorised to be kept by the county council or district committee in the district annexed or any of them by any Act or otherwise shall so far as they relate to the district annexed belong and be transferred to the Town Council and in so far as they would at the annexation be receivable in evidence shall be admitted as evidence in all courts and proceedings notwithstanding the cesser of the powers of the said county council or district committee.

(2) This section shall not apply to the books documents maps and plans kept by the county council and the district committee which relate to parts of the county other than the district annexed but the Town Council and their officers shall be entitled to access to such books documents maps and plans in so far as may be necessary in relation to matters affecting the district annexed and the respective clerks or other officers of the county council and the district committee shall afford all necessary and reasonable facilities for that purpose.

Application
of general
and local
Acts and
byelaws.

24.—(1) Except so far as inconsistent with or varied by this Order the provisions of all public and general and local and personal Acts and Orders relating to or in force in the existing burgh and all byelaws rules regulations and orders made thereunder shall extend and apply to the burgh in the same way and to the like extent as they apply to and have effect within the existing burgh.

(2) All byelaws rules regulations and orders made under the provisions of any Acts or Orders relative to and in force in the district annexed or any part thereof shall cease to have effect except in so far as the same may have been acted upon and except in so far as the same are not inconsistent with or superseded by the byelaws rules regulations and orders in force in the burgh.

25. Nothing in this Order shall interfere with any Parliamentary constituency or the limits thereof or the electors thereof so far as regards the election of members to serve in Parliament.

A.D. 1925.

Order not to affect election of members to serve in Parliament.

26.—(1) The Secretary for Scotland may in order to meet the circumstances arising from the extension of the existing burgh under this Order by order vary the procedure prescribed by or in pursuance of the Temperance (Scotland) Act 1913 in connection with the taking of polls under the last-mentioned Act or otherwise including any dates fixed in connection with such procedure.

Variation of procedure under Temperance (Scotland) Act 1913.

(2) This section shall come into operation on the passing of the Act confirming this Order.

27.—(1) Subject and without prejudice to any of the provisions of this Order the Town Council and the county council or district committee (all of whom are hereinafter in this section referred to as "the authorities") or any of them may make and carry into effect agreements with respect to the transfer of property from the authorities or any of them to the Town Council and for settling and adjusting any claims or any doubt or difference arising in relation thereto.

Power to Town Council and other authorities to enter into agreements.

(2) The provisions of any such agreement shall be deemed to be within the powers of the Town Council and of the authorities or any of them respectively and if and when made shall have and be carried into effect accordingly.

(3) Any difference or dispute arising as to such agreement or as to any other matter or thing in relation to the transference under this Order of the property of the authorities or any of them shall be determined by an arbiter to be agreed upon or failing agreement to be appointed by the Secretary for Scotland on the application of any of the parties concerned.

28. All certificates of licence granted before the commencement of this Order by the competent licensing court for the district annexed or any part thereof then in force shall unless the same be revoked or previously expire subsist and continue until the twenty-eighth day of May one thousand nine hundred and twenty-six but all prosecutions for offences under the Licensing (Scotland) Acts 1903 to 1923 with reference to such certificates

Provisions as to subsisting licences in district annexed.

A.D. 1925. — or for any breach thereof or of the byelaws or regulations made under the said Acts shall after the commencement of this Order be proceeded with in the same way as if such certificates had been originally granted within the burgh and all applications for renewal or transfer of such certificates shall after the commencement of this Order be disposed of by the licensing court of the burgh.

As to vesting
all property
transferred
to Town
Council.

29. All property transferred to or vested in the Town Council by virtue of this Order shall vest in them without the necessity of recording in the Register of Sasines any conveyance or notarial instrument or other deed or writing but for the purpose of enabling the Town Council to complete a title if thought fit to any property transferred to and vested in them by virtue of this Order by expediting a notarial instrument or otherwise this Order shall be deemed to be and may be used as a general disposition or assignation as the case may be of such property in favour of the Town Council.

Financial
adjust-
ments.

30. The financial adjustment as between the Town Council and the county council consequent upon the inclusion within the boundaries of the burgh of the district annexed shall be made upon the basis of the provisions of the Local Government (Adjustments) (Scotland) Act 1914 and in accordance with the rules contained in the schedule to that Act and section fifty of the Local Government (Scotland) Act 1889 shall apply and have effect on the extension of the boundaries of the existing burgh by this Order and any dispute or difference arising in connection with such adjustment shall be settled by arbitration by an arbiter to be agreed upon or failing agreement to be appointed by the Secretary for Scotland on the application of the Town Council or the county council.

Actions &c.
not to abate.

31.—(1) No action arbitration prosecution or proceeding commenced pending or existing by or against the county council or the district committee or either of them or other authority in relation to any powers duties liabilities or property by this Order transferred to the Town Council shall in any wise abate or be discontinued or prejudicially affected by reason of the confirming of this Order but may be continued prosecuted and enforced by or in favour of or against the Town Council as successors of the county council or the district

committee or either of them or other authority as fully and effectually as if this Order had not been confirmed. A.D. 1925.

(2) All deeds contracts bonds agreements and other instruments entered into or made and subsisting at the annexation and affecting any such powers duties liabilities or property shall be of as full force and effect in favour of or against the Town Council and may be enforced as fully and effectually as if instead of the county council or the district committee or either of them or other authority the Town Council had been a party thereto.

32. All laws statutes jurisdictions powers privileges and usages now in force in relation to the existing burgh or within the district annexed in so far as they are inconsistent or at variance with the provisions of this Order are subject to the provisions of this Order hereby repealed and extinguished. Repeal of laws &c. inconsistent with this Order.

33. The Town Council in addition to any other powers of borrowing which they now have or may obtain may (a) for the purpose of the payment of any capital sum which may be paid under the provisions of the section of this Order whereof the marginal note is "Financial adjustments" (b) for the purpose of the payment of any capital sum in respect of any land buildings drainage works or others taken over by the Town Council and (c) for the purpose of paying the costs charges and expenses of and incidental to the preparing for obtaining and confirming this Order or otherwise in relation thereto borrow such money as may be necessary on the security of an assessment to be imposed in the same manner and along with and as part of the assessment for the maintenance and repair of highways leviable by the Town Council as local authority under the Roads and Bridges (Scotland) Act 1878 or the Public Health General Assessment leviable under the Public Health (Scotland) Act 1897 or any Acts amending the said Acts and the Town Council may assign so much or such part as may be required of such assessment as security for the money which may be so borrowed under the provisions of this section Provided (1) that money so borrowed for purpose (a) and purpose (b) aforesaid shall be repaid within twenty-five years from the date of borrowing and (2) that any money Borrowing and assessing powers.

A.D. 1925. — so borrowed for purpose (c) aforesaid shall be repaid within five years from the commencement of this Order.

Costs of
Order.

34. All costs charges and expenses of and incidental to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Town Council out of moneys borrowed by them under this Order for that purpose or any rates or assessments which they are authorised to levy.

The SCHEDULES referred to in the foregoing Order.

THE FIRST SCHEDULE.

(Referred to in the section of the Order of which the marginal note is "Extension of boundaries and change of name of burgh.")

BOUNDARIES OF THE BURGH.

Commencing at a point at high-water mark where the retaining wall meets the south-west abutment of the bridge at the east end of the Kirkcaldy to Leven highway where it crosses the River Leven before entering the burgh of Leven thence crossing the abutment of the said bridge and continuing in a north-westerly direction along high-water mark for a distance of 217 yards or thereby thence in a south-westerly direction until it reaches a point 50 yards or thereby from the north side of the Kirkcaldy to Leven highway in line with the eastern wall of Kirklandhill Farm Steading thence in a south-easterly direction crossing the said Kirkcaldy to Leven highway to a point on the south side of the said highway where it joins the western side of the roadway leading to Kirklandhill Farm thence in a south-westerly direction until it reaches the existing burgh boundary at the east side of Wellesley Road Buckhaven 200 feet or thereby from the northern side of the Kirkcaldy to Leven highway measuring along the existing burgh boundary thence in a north-westerly direction and following the existing burgh boundary to a point on the south side of the bridge over the London and North Eastern Railway from Thornton to Buckhaven thence in a south-westerly direction along the fence on the south side of the said railway for a distance of 910 feet or thereby to the centre

of the hedge thence along the said hedge in a south-easterly direction until it reaches high-water mark thence in a due southerly direction until it reaches low-water mark thence along low-water mark until it reaches the existing burgh boundary thence in a north-easterly direction along low-water mark until it reaches the south-most pier of the Buckhaven Harbour on which the light is placed thence along the seaward side of the said pier until it reaches low-water mark thence along low-water mark until it reaches the south side of the Methil Harbour 45 yards or thereby west of the entrance channel to Nos. 1 and 2 Docks thence in a southerly direction until it reaches the south point of the breakwater where the leading light is fixed thence in a north-easterly direction along the seaward side of the breakwater until it reaches the beach at low-water mark thence along low-water mark until it reaches the south abutment of the bridge carrying the London and North Eastern Railway over the River Leven thence along high-water mark to the point of commencement.

A.D. 1925.
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THE SECOND SCHEDULE.

(Referred to in the section of the Order of which the
marginal note is "Additions to wards.")

FIRST.

Area within the parish of Wemyss in the county of Fife added to the existing Ward I. and bounded as follows Commencing at a point on the south side of the footbridge over the London and North Eastern Railway from Thornton to Buckhaven thence in a south-westerly direction along the fence on the south side of the said railway for a distance of 910 feet or thereby to the centre of the hedge thence along the said hedge in a south-easterly direction until it reaches high-water mark thence in a due southerly direction until it reaches low-water mark thence along low-water mark until it reaches the existing burgh boundary thence along the existing burgh boundary to the point of commencement.

SECOND.

Area within the parish of Wemyss in the county of Fife added to the existing Ward II. and bounded as follows Commencing at a point on the existing burgh boundary in line with the centre of Ward Street thence in a north-westerly direction until it reaches the storage sheds belonging to the Wemyss Coal Company thence in a south-westerly direction until it reaches the existing burgh boundary at Wellesley Road Buckhaven thence along the existing burgh boundary to the point of commencement.

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THIRD.

Area within the parish of Wemyss in the county of Fife added to the existing Ward III. and bounded as follows Commencing at the existing burgh boundary at the centre of Kirkland Road thence in a north-westerly direction until it reaches a point on the Kirkcaldy to Leven highway thence in a south-westerly direction until it reaches a point on the storage shed at Wemyss brickworks opposite the centre of Ward Street thence in a south-easterly direction in line with the centre of Ward Street to the existing burgh boundary thence along the existing burgh boundary to the point of commencement.

FOURTH.

Area within the parish of Wemyss in the county of Fife added to the existing Ward IV. and bounded as follows Commencing at a point at high-water mark where the retaining wall meets the south-west abutment of the bridge at the east end of the Kirkcaldy to Leven highway where it crosses the River Leven before entering the burgh of Leven thence crossing the abutment of the said bridge and continuing in a north-westerly direction along high-water mark for a distance of 217 yards or thereby thence in a south-westerly direction until it reaches a point opposite the entrance to the right-of-way past Kirklandhill Farm 50 yards or thereby from the centre of the said Kirkcaldy to Leven highway thence at right angles along the centre of the said right-of-way past Kirklandhill Farm to where it meets the existing burgh boundary at the Fife Coal Company's mineral railway at Kirkland Road thence along the existing burgh boundary to the point of commencement.

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